

		However, these allegations are consistent with Defendant’s counsel’s claim of mistake and inadvertent error in misunderstanding and failing to communicate the deadline to pay the JAMS invoice. The evidence does not demonstrate any strategic or tactical delay by Defendant or its counsel that would warrant penalizing Defendant for its short delay in paying the JAMS invoice. In supplemental briefing, Plaintiff appears to concede the lack of evidence of any strategic delay on Defendant’s part. Plaintiff’s judicial estoppel argument also fails as Defendant’s legal position was rejected by both Judge Sherman and the appellate court. Judicial estoppel only applies when “(1) the same party has taken two positions; (2) the positions were taken in judicial or quasi-judicial administrative proceedings; (3) the party was successful in asserting the first position (i.e., the tribunal adopted the position or accepted it as true); (4) the two positions are totally inconsistent; and (5) the first position was not taken as a result of ignorance, fraud, or mistake.” (<i>Vaghashia v. Vaghashia</i> (2024) 106 Cal. App. 5th 188, 195 [emphasis added].) Defendant’s interpretation of CCP § 1281.98 was not successfully asserted or accepted as true by either court. The court also disagrees with Plaintiff’s contention that Defendant’s counsel acted below the professional standard of care. The court finds that Defendant has met its burden to show that its counsel’s conduct was based on an inadvertent, good faith mistake, and not done willfully, fraudulently or with gross negligence. Further, Plaintiff has failed to demonstrate any actual prejudice from the delay. Accordingly, Defendant is excused from a finding of material breach for its delay in making the JAMS invoice payment pursuant to CCP § 1281.98. Defendant is ordered to give notice of this ruling.
9	30-2025-01528311 Rivera vs. Electrolurgy Manufacturing, Inc.	Off Calendar